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autoriteitpersoonsgegevens.nl
The State Secretary for Infrastructure and Water Management
P.O. Box 20901
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Date
March 29, 2022
Our reference
z2021-17576
Your letter dated
December 1, 2021
Contact person
Your reference
IENW/BSK/-2021/324502
Subject
Advice on a draft for the Railway Act 202#

Dear Ms. Heijnen,

In your letter dated December 1, 2021, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the GDPR regarding a draft for the Railway Act 202# (hereinafter: the draft).

The AP has a comment on the draft and advises that this should be taken into account.

Scope

Due to the many changes (often due to EU directives) in recent years, railway regulation has become fragmented. The aim is to consolidate the regulations into one coherent and modernized system. With regard to personal data, this largely concerns existing processing of personal data that is often also required by European law (train driver licenses, register of examiners). Additionally, a new reporting obligation for incidents in the context of railway safety ('just culture') is being introduced.

Advice

Health data is sensitive data (special personal data) that may not be processed unless the GDPR provides a ground for exception.¹ The draft concerns a number of existing processes of special personal data, such as the assessment of the physical and psychological fitness of train drivers and the enforcement of the alcohol ban.² It is proposed to explicitly state that both the minister, the National Security Agency, infrastructure managers, managers of local railway infrastructure, railway companies, accredited bodies, and training institutions can be data controllers for this purpose. Although these are existing processes that are largely required by European law, this provision is new in the sense that the current law places the responsibility for processing with the minister.³ This change has not been explained.

The AP notes that it is likely that the processing of health data in the railway sector is necessary from a safety perspective by multiple organizations. Generally, the special nature of the involved data and the specific role or task of the involved organization should be sufficiently clear from the relevant legislation, including the resulting responsibility for the legality of the processing.⁴ This raises the question of what the added value is of the explicit legal assignment of only the data controller responsibility to all these organizations in general in Article 7.19, paragraph 2, of the draft.

The AP advises:

- to clarify changes in the responsibility for existing processes of special personal data and

- to delete Article 7.19, paragraph 2, of the draft or to elaborate on its added value in the explanation.

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to know the expected date of publication as soon as this is known.

Yours sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

2 See the enumeration in Article 7.19, paragraph 1, of the draft.

3 Explanation, paragraph 11.3.

4 As regarding medical confidentiality in line with Article 9, paragraph 3, of the GDPR.